

Sunder Shyam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 February 2021 · WRIT - C No. 21732 of 2020 · **Writ disposed of; petitioner relegated to the Executive Engineer under Clause 6.5, with a Rs.15,000 deposit, a direction to settle accounts, and a short stay of the recovery certificate.**

HEADNOTE

A consumer challenging a tehsildar recovery certificate founded on a distribution-licensee demand, and alleging that tube-well supply had already been disconnected, was directed to move a proper representation to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court did not decide the demand on merits. Subject to deposit of Rs.15,000, the Executive Engineer was to consider the application in accordance with law and settle the electricity accounts with adequate time to pay any outstanding consumption dues. The recovery certificate was stayed for two months or until that decision, whichever was earlier.

FACTUAL SUMMARY

Sunder Shyam challenged a recovery certificate dated 31 August 2019 issued by the Tehsildar, Kairana, Shamli, following a demand of Paschimanchal Vidyut Vitran Nigam Ltd. He contended that the tube-well electricity connection had been disconnected much earlier and that the demand was illegal. Counsel for the Executive Engineer submitted that the grievance could be addressed under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

representation to Executive Engineer against disputed demand and recovery

HOLDING

Where a consumer challenges a tehsildar recovery certificate issued on a licensee's electricity demand, including a plea that supply had already been disconnected, the High Court will not decide the demand on merits and will relegate the consumer to a proper application before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be considered in accordance with law. Accounts may be directed to be settled with time to pay any outstanding consumption dues, and recovery may be stayed for a short period pending that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ against the recovery certificate and licensee's demand was disposed of by directing a proper Clause 6.5 representation, without a merits decision on the bill or the disconnection plea. ¶ 1

clause-6.5-representation-executive-engineer The Court accepted that the consumer's grievance was to be addressed by the Executive Engineer under Clause 6.5 and directed a proper application within three weeks, to be decided preferably within six weeks, subject to a Rs.15,000 deposit. ¶ 1

6.5-representation-as-appropriate-remedy Clause 6.5 was treated as the appropriate remedy for the disputed tube-well demand and recovery rather than writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE 31.08.2019 RECOVERY CERTIFICATE AND THE LICENSEE'S DEMAND

The Court did not examine whether the demand was illegal or whether the tube-well connection had already been disconnected. ¶ 1

